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The Honorable Thomas O. Rice

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF WASHINGTON
AT SPOKANE

JANE ELIZABETH ROBERTS, *et al.*,

Plaintiff,

v.

SHRINERS HOSPITALS FOR CHILDREN, SHRINERS HOSPITALS FOR CHILDREN – SPOKANE, BEVERLY BOKOVITZ, FRANCES FARLEY, JERRY GANTT, JOHN MCCABE, PHILLIP GRADY, PETER BREWER, AND GOV. JAY INSLEE,

Defendants.

No. 2:23-cv-00295-TOR

SHRINERS CHILDREN'S REPLY IN SUPPORT OF MOTION TO DISMISS

2/5/2024
Without Oral Argument

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I. INTRODUCTION

Plaintiffs' claims have been uniformly dismissed on the pleadings by every court to consider them in the many cases challenging employee vaccine mandates across the nation. This is because, as Shriners Children's showed in its Motion to Dismiss (ECF No. 32, "Motion" or "Mot."), Plaintiffs' claims are fundamentally deficient. Plaintiffs do not address the overwhelming authority presented by Shriners Children's, including previous rulings by this Court denying COVID vaccination mandate challenges by state and city employees, compelling dismissal of their claims. And they ignore the particular interests for an employee vaccine policy in a pediatric hospital whose youngest patients could not receive a COVID vaccine amid a surge in infections caused by the delta variant.

Plaintiffs' claims warrant dismissal for numerous reasons, including that (1) the Shriners Children's Defendants are not state actors; (2) even if they were, Plaintiffs plead claims for which no private right of action exists, including 21 U.S.C. § 360bbb-3; (3) Shriners Children's vaccination requirement did not violate Plaintiffs' fundamental rights and satisfies rational basis review as it was intended to protect Shriners Children's pediatric patients, their families, employees, and others; and (4) Plaintiffs' supplemental Washington law claims fail as a matter of law as well.

Faced with the substantial case law cited by Shriners Children's supporting dismissal, Plaintiffs do nothing to distinguish that authority and instead wrongly contend that their claims should survive based on two primary counterarguments

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that the Shriners Children's Defendants are somehow state actors subject to claims under 42 U.S.C. § 1983 (they are not), and that the Pfizer-BioNTech vaccine was still considered "investigational" even after receiving full FDA approval for use by individuals 16 and older in August 2021 (it was not). Both arguments are meritless and Plaintiffs' claims must be dismissed.

First, the Shriners Children's Defendants are not state actors under the public function, public compulsion, symbiotic relationship, or state enforced custom tests. Plaintiffs confuse the administration of a COVID vaccine program (in which they did not participate) with the institution of an employee vaccination requirement, ignore Shriners Children's arguments, and cite no authority that would subject a private hospital and its officials in these circumstances to Section 1983 claims. And even if they *could* show that the Shriners Children's Defendants were state actors, Plaintiffs' claims would still fail, because the Shriners Children's Defendants would then be subject to qualified immunity—a point that Plaintiffs fail to rebut.

Second, Plaintiffs could have received an FDA-approved COVID vaccine to comply with Shriners Children's policy. Plaintiffs' arguments that Shriners Children's mandated use of investigational drugs are wrong. Indeed, Plaintiffs acknowledge that the FDA fully approved Pfizer-BioNTech's vaccine on August 23, 2021—before Shriners Children's mandate went into effect. To be clear, although Pfizer-BioNTech began branding and marketing its vaccine as Comirnaty following FDA approval, its vaccine authorized for emergency use

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(the Pfizer-BioNTech vaccine) was available to the public and identical in formulation to Comirnaty, as FDA and CDC guidance made clear. At least four courts have rejected the distinction that Plaintiffs attempt to draw regarding Pfizer-BioNTech's vaccine after FDA approval, and this Court should do the same. *See, e.g., Johnson v. Brown*, 567 F. Supp. 3d 1230, 1239-55 (D. Or. 2021) ("[T]he Pfizer-BioNTech Vaccine and Comirnaty are identical in all material respects."); *Curtis v. PeaceHealth*, --- F. Supp. 3d ----, 2023 WL 8828753, at *2, 8 (W.D. Wash. Dec. 21, 2023) (Plaintiffs' argument, advanced by the same Plaintiffs' counsel in this case, was rejected in *Johnson* and is "belied" by the FDA's approval of Comirnaty and CDC guidance.). Plaintiffs acknowledge that they "do not contest Shriners' right to issue a mandate of a licensed vaccine." Opp. at 5. Their claims fail, as a result.

Given the clear and consistent authority against Plaintiffs, amendment would be futile. Plaintiffs' claims should be dismissed with prejudice and without leave to amend.

II. ARGUMENT

A. The Shriners Children's Defendants Are Not State Actors, And If They Were, They Would Otherwise Be Entitled to Qualified Immunity.

Plaintiffs do not rebut Shriners Children's arguments or authority demonstrating that the Shriners Children's Defendants are not state actors under any of the four tests Plaintiffs cite. Indeed, much of Plaintiffs' Opposition (ECF No. 34, "Opp.") and Section 1983 arguments conflate Shriners Children's

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administration of a COVID vaccination program (in which Plaintiffs concede they never participated, given that they do not claim to have ever received a COVID vaccine) and instituting a vaccination policy applicable to Shriners Children's workforce. *See, e.g.*, Opp. at 9-10 (discussing COVID vaccination administration requirements), 13-14 (referencing federal requirements for "vaccination providers" and "distribut[ion]" of COVID vaccines). Shriners Children's operation of a COVID vaccination program is unrelated to Plaintiffs' claims and whether Shriners Children's can be considered a state actor subject to Section 1983 claims with respect to its employee vaccination policy.

1. The Public Function Test Does Not Make the Shriners Children's Defendants State Actors.

Plaintiffs struggle to articulate exactly what conduct served the public function they allege. Plaintiffs alternatively argue that the Shriners Children's Defendants served a public function because their (private) facilities were ostensibly built to benefit the public, because they administered COVID-19 vaccines generally, and because they "regulated the employment" of Plaintiffs by requiring vaccination in accordance with Governor Inslee's Proclamation. Opp. at 19-20. Regardless of the basis, Plaintiffs fail to engage with or even acknowledge any of the authority Shriners Children's cited that neither the facilitation of a government-funded vaccine program, nor the institution of an employee vaccine policy, constitutes a public function that would convert a private entity into a state actor. Mot. at 15-17 (citing cases); *see also Johnson v. Tyson Foods, Inc.*, 607 F. Supp. 3d 790, 800 (W.D. Tenn. 2022) (a "private

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business's implementation of an employee vaccination policy is not akin to any of 'those limited activities—for example running a city—that have "traditionally *and exclusively"* been performed by the government'" (emphasis added; citation omitted)).

The limited authorities Plaintiffs mention do not save their claims. Plaintiffs cite *Jackson v. Metropolitan Edison Co.*, 419 U.S. 345 (1974), and *Lee v. Katz*, 276 F.3d 550 (9th Cir. 2002), in urging the Court to find the public function test is met here. Opp. at 19-20. But *Jackson* concerned the defendant's provision of electricity, which was found *not* to be "traditionally the exclusive prerogative of the state" constituting a public function. *Jackson*, 419 U.S. at 353. *Lee* involved the regulation of speech in a public forum. Neither of these cases support that a private employer's vaccination requirement constitutes a public function, because it does not. *See also Johnson*, 607 F. Supp. 3d at 800-801 ("private companies often implement vaccination policies for their employees").

2. Plaintiffs Did Not Rebut Shriners Children's Showing That Their Policy Fails to Satisfy the Public Compulsion Test.

Plaintiffs similarly ignore Shriners Children's explanation and authority showing that their conduct does not satisfy the public compulsion test discussed in *Blum v. Yaretsky*, 457 U.S. 991 (1982). *See* Mot. at 17-18 (discussing *Blum* and *Sutton v. Providence St. Joseph Med. Ctr.*, 192 F.3d 826 (9th Cir. 1999) as finding no state action in the implementation of generally applicable laws, such as Governor Inslee's Proclamation, which applied to state government, education, and healthcare workers, ECF No. 1-3). Instead, Plaintiffs state summarily that

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"Defendants affirm they acted under government compulsion when executing Proclamation 24-14.1 and discharging Plaintiffs from employment." Opp. at 23. This unsupported, incorrect statement provides no basis for finding that Shriners Children's policy constitutes state action under the public compulsion test.

3. No Symbiotic Relationship Existed Between the Shriners Children's Defendants and the State.

Plaintiffs also ignore the Ninth Circuit authority supporting Shriners Children's argument that no symbiotic relationship (or joint action) existed sufficient to make them state actors, because Plaintiffs have alleged no "substantial financial integration" between Shriners Children's and the State concerning Shriners Children's employee vaccination policy. *See* Mot. at 18-19 (discussing *Brunette v. Humane Soc'y of Ventura Cnty.*, 294 F.3d 1205 (9th Cir. 2002)); *accord Rendell-Baker v. Kohn*, 457 U.S. 830, 843 (1982) (no symbiotic relationship where no evidence that any money was flowing from private entity defendant to the state).

Plaintiffs' arguments regarding Shriners Children's administration of a COVID vaccination program are distinct from the institution of an employee vaccination policy, regardless of whether Shriners Children's benefitted financially from administering COVID vaccines. Plaintiffs' discussion of *Lugar v. Edmondson Oil Co.*, 457 U.S. 922 (1982), is similarly inapposite, as they attempt to paint the facts of the case—in which a private party jointly participated with state officials in the seizure of disputed property—as akin to those here. Claiming that the "facts in this case are identical insofar as Defendants engaged in

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joint action with Governor Inslee," Opp. at 23, does not make it so, and Plaintiffs fail to offer any case in which a court has held as much.

4. Plaintiffs Do Not Save Their State Enforced Custom Argument.

Plaintiffs further claim that Shriners Children's somehow "used … the State custom to retaliate against Plaintiffs," Opp. at 26, but they again fail to address Shriners Children's argument on this point in its Motion: a private actor cannot allegedly take part in the *development* of a custom while simultaneously being compelled by that custom as though it has "the force of law." *Adickes v. S.H. Kress & Co.*, 398 U.S. 144, 163 (1970). Moreover, Plaintiffs do not—and cannot plausibly—point to any historical instances sufficient to allege any "long-established practice considered as unwritten law"[1] related to requiring healthcare workers to be vaccinated with drugs ostensibly approved for investigational use only in the midst of an unprecedented pandemic.

5. The Shriners Children's Defendants Are Nevertheless Entitled to Qualified Immunity.

Even if Plaintiffs *could* establish that any Shriners Children's Defendant was a state actor, the individually named Shriners Children's Defendants are still entitled to qualified immunity. Mot. at 13-14, 20 (citing *Kennedy v. City of Ridgefield*, 439 F.3d 1055 (9th Cir. 2006), and *Jones v. Cnty. of Los Angeles*, 722 F. App'x 634, 637-38 (9th Cir. 2018)).

[1] https://www.merriam-webster.com/dictionary/custom (defining "custom").

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Plaintiffs cite *Jensen v. Lane County*, 222 F.3d 570 (9th Cir. 2000), as supposedly explaining "how and why the Supreme Court holds that private parties are not entitled to qualified immunity" and "that a private physician contracting with a county hospital was a state actor but was not entitled to qualified immunity." Opp. at 39. But *Jensen* is not analogous, as it concerned a Section 1983 action brought by a man who claimed his constitutional rights were violated as a result of a temporary detention ordered by a psychiatrist employed by a private group that contracted with the county to provide such evaluations. 222 F.3d at 573-74. Under the specific facts of *Jensen*, the Ninth Circuit concluded that the psychiatrist was a state actor and not entitled to qualified immunity. *Id.* at 579-80; *see also id.* at 575 (noting the "complex and deeply intertwined process" between the private psychiatrist and county employees in evaluating and detaining potentially mentally ill individuals on behalf of the county).

By contrast, the individual Shriners Children's Defendants did not contract with the State to provide services to Plaintiffs as did the psychiatrist in *Jensen*. Again, Shriners Children's administration of a COVID vaccination program subject to federal and state requirements is distinct from its vaccination policy applicable to all its employees. The facts and rationale of the Ninth Circuit in *Jensen*, including the Court's discussion of the market forces involved in providing the psychiatric care at issue and the policy justifications for providing qualified immunity to psychiatrists contracting with the county, are not applicable here. *Id.* at 577-79. The individual Shriners Children's Defendants provided no services to

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the State nor Plaintiffs, and nothing in *Jensen* supports that they should be denied qualified immunity with respect to the vaccination policy.

Plaintiffs additionally state that the individually named Shriners Children's Defendants "cannot assert a good faith qualified immunity argument" ostensibly because they "should have known" that "the investigational new drug classification can never come under compulsory use." Opp. at 39. But Plaintiffs do not address Shriners Children's specific argument that Governor Inslee's Proclamation did not provide fair notice that their actions in requiring their employees to be vaccinated were somehow *inconsistent* with the law, especially given that the U.S. Supreme Court subsequently held that a federal COVID vaccination requirement for healthcare workers did not violate the law. Mot. at 13-14, 20; *see also Bellatoni v. Lamont*, 2023 WL 8889516, at *1-2 (2d Cir. Dec. 26, 2023) (affirming dismissal of COVID mandate challenge on qualified immunity grounds; "We have never held that, in the face of a public health emergency, the Constitution forbids vaccine mandates" and "[a] reasonable official would thus have no cause to think that [a vaccine mandate] would violate clearly established law.").

B. Plaintiffs Could Have Complied with Shriners Children's Policy By Receiving the FDA-Approved Pfizer-BioNTech Vaccine.

Plaintiffs' Opposition also largely rests on their repeated contention that Pfizer-BioNTech's vaccine was still considered "investigational" even after the FDA fully approved the vaccine on August 23, 2021, for use by individuals 16 or older. Opp. at 5, 34, 37, 39, 41, 44-50. This argument has been rejected by

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courts in at least four cases, including by Judge Bryan in his recent order dismissing claims against Governor Inslee by Plaintiffs' same counsel here. *Curtis*, 2023 WL 8828753, at *2, 8. Thus, even if the Shriners Children's Defendants are considered state actors, Plaintiffs could have received the FDA-approved Pfizer-BioNTech vaccine to comply with Shriners Children's mandate, and their claims should be dismissed in full.

In giving full approval to Pfizer-BioNTech's Biologics License Application for its COVID vaccine, the FDA explained that "[t]he vaccine has been known as the Pfizer-BioNTech COVID-19 vaccine, and will now be marketed as Comirnaty, for the preventing of COVID-19 disease in individuals 16 years of age and older." https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine. The FDA continued emergency use authorization (EUA) of Pfizer-BioNTech's vaccine for individuals 12 to 15 years old and as a third dose for some immunocompromised individuals. *Id.* In reissuing the EUA for the Pfizer-BioNTech vaccine, the FDA noted that

> The licensed vaccine has the same formulation as the EUA-authorized vaccine and the products can be used interchangeably to provide the vaccination series without presenting any safety or effectiveness concerns. The products are legally distinct with certain differences that do not impact safety or effectiveness.

ECF No. 34-1 at 2 n.8; *see also Children's Health Def. v. U.S. Food & Drug Admin.*, 2022 WL 2704554, at *2 (6th Cir. July 12, 2022) ("FDA described Comirnaty as 'interchangeable' with Pfizer-BioNTech but still 'legally distinct' because the two are subject to separate statutory regimes.").

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The CDC subsequently issued guidance explaining that Comirnaty and Pfizer-BioNTech's EUA vaccine were identical, with Pfizer only being able to begin branding and marketing Comirnaty following FDA approval. https://stacks.cdc.gov/view/cdc/111109. The CDC guidance added:

> Now that the FDA-authorized Pfizer-BioNTech COVID-19 vaccine has been approved by the FDA for individuals 16 years of age and older, it will be marketed as Comirnaty. The use of the name Pfizer-BioNTech will still be used for individuals 12-15 years old since this age group has not been approved. There has **been no change** in the formulation of the vaccine since the name change.

Id. (emphasis in original).

After examining the FDA's authorizations and approvals of Pfizer-BioNTech's vaccine, the court in *Johnson* concluded that the FDA continued EUA use of Pfizer-BioNTech's vaccine because "there was a backlog of labeled and branded Pfizer-BioNTech Vaccine, there was not enough branded and labeled Comirnaty vaccine, the two vaccines have the same formulations and can be used interchangeably, and there are some uses for which Comirnaty was not approved." 567 F. Supp. 3d at 1240-41. The Court added that the FDA and CDC have "repeatedly emphasized, including in instructions to healthcare providers administering the vaccine, that Comirnaty and the Pfizer-BioNTech Vaccine have the *same formulation* and can be used interchangeably." *Id.* at 1243 (emphasis in original).

Plaintiffs concede that Comirnaty and Pfizer-BioNTech's EUA vaccine are identical in formulation, even asking the court to take judicial notice of this via

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the Marks Declaration. Opp. at 35; *see also* ECF No. 35 at 3 (acknowledging "there is one drug technology (Pfizer-BioNTech vaccine)"). But Plaintiffs claim "the [vaccine's] formulation has no relevance to the issues presented in Plaintiffs' Complaint" because the labeling of Pfizer-BioNTech's vaccine following FDA approval is supposedly the only consideration. Opp. at 29-30. This argument has been rejected by courts in at least four cases.

In *Johnson*, the court concluded that Comirnaty and Pfizer-BioNTech's EUA vaccine "have the same formulation, are interchangeable, and are identical for safety and effectiveness. Thus, the actual vaccine that is being injected is not materially different, whether it is Comirnaty or the Pfizer-BioNTech Vaccine." 567 F. Supp. 3d at 1247; *see also id.* at 1252 ("Plaintiffs have shown no scientific, biological, or formulaic difference between the actual drug in the vial of the Pfizer-BioNTech Vaccine and the one in the vial of the Comirnaty vaccine" and "The Court does not find that any legal differences [concerning the vaccines] are enough to support a likelihood, or even serious questions, that [Oregon's] Vaccine Orders are forcing Plaintiffs to take experimental medication[.]").

Plaintiffs do not discuss *Johnson* in their Opposition, nor do they acknowledge Judge Bryan's published ruling in *Curtis*.[2] In his order, Judge

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[2] Plaintiffs only discuss Judge Bryan's ruling in a belated Response to Shriners Children's Notice of Supplemental Authority they filed after their Opposition. ECF No. 35. Plaintiffs additionally do not address *Johnson* in this Response, even though Judge Bryan relied on it in his ruling.

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Bryan approvingly cited *Johnson* and concluded that plaintiffs' claim that Pfizer-BioNTech's vaccine was still "experimental" even after receiving FDA approval was "belied" by the FDA's and CDC's guidance. *Id.* at *2; *see also id.* at *8 ("[T]his contention was considered and rejected by another court in this circuit, *Johnson* at 1234-1243, and its reasoning applies here."). Federal district courts have concluded the same elsewhere as well. *Legaretta v. Macias*, 603 F. Supp. 3d 1050, 1060-61 (D.N.M. 2022) ("The Pfizer COVID-19 vaccine has been fully approved by the FDA, and thus is not 'an experimental drug unlicensed for its present use.'") (quoting *Doe v. Rumsfeld*, 297 F. Supp. 2d 119, 123 (D.D.C. 2003)); *Valdez v. Grisham*, 559 F. Supp. 3d 1161, 1171 (D.N.M. 2021) (challenges to emergency use vaccines "are not applicable to the administration of the Pfizer vaccine to individuals 16 years of age and older").[3]

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[3] Plaintiffs claim that *Doe v. Rumsfeld* "is the closest [case] to being on point with the case at bar." Opp. at 43. But *Doe* concerned a challenge brought by servicemembers under 10 U.S.C. § 1107 (not at issue here) to a Department of Defense requirement that they receive an experimental anthrax vaccine. 297 F. Supp. 2d at 123. Courts that have examined *Doe* in connection with COVID vaccine mandate challenges have concluded that it is not analogous. *See Curtis*, 2023 WL 8828753, at *7 ("*Doe* did not take place during a pandemic of a highly transmissible virus that killed millions of people. Further, it did not address any of the claims the Plaintiffs make here" regarding supposedly clearly established constitutional or statutory rights.); *Robert v. Austin*, 2021 WL 8444665, at *2 (D.

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While they contend that the Pfizer-BioNTech vaccine was somehow still "investigational" following FDA approval, Plaintiffs repeatedly concede that their claims fail in their entirety with respect to a vaccination requirement concerning a licensed COVID vaccine. *See* Opp. at 5 ("Plaintiffs do not contest Shriners' right to issue a mandate of a licensed vaccine"), 41 ("Plaintiffs were discharged for … refus[ing] injection of federally funded investigational drugs, not a licensed vaccine"), 44 ("Shriners Hospitals for Children could not lawfully vary from a Governor's proclamation relating to licensed drugs").

Given the FDA's approval of Pfizer-BioNTech's vaccine on August 23, 2021, and Shriners Children's institution of its system-wide vaccination policy on September 14, 2021, Mot. at 8-10, Plaintiffs could have complied with the requirement by receiving the Pfizer-BioNTech vaccine ahead of Shriners Children's December 6, 2021 deadline. ECF No. 1-5 at 6. As courts have recognized, and this Court should follow, the Pfizer-BioNTech vaccine remained unchanged in formulation after FDA approval, and Comirnaty and the Pfizer-BioNTech EUA vaccine were identical. Accordingly, Plaintiffs' claims—all of which are predicated on Shriners Children's requiring them to receive a

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Colo. Sept. 1, 2021) (following FDA approval of Pfizer-BioNTech vaccine, "Plaintiffs have not shown that they are likely to establish that any COVID-19 vaccine is an 'investigational new drug' or 'unapproved for its intended use,' so comparisons between their circumstances and servicemembers required to participate in the Anthrax Vaccine Immunization Program are inapt.").

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supposedly "investigational" or "experimental" COVID vaccine—should be dismissed in full.

C. Plaintiffs' Claims Fail For Additional Reasons.

Plaintiffs' claims fail for additional reasons beyond that the Shriners Children's Defendants are not state actors and the Pfizer-BioNTech vaccine was FDA-approved at the time of Shriners Children's employee vaccination policy. Most critically, Plaintiffs cite no case law in which a court has agreed with any of their theories or claims challenging Shriners Children's vaccination policy.

Subjected to Investigational Drug Use Claim. As Shriners Children's explained, Plaintiffs' claim that they were subjected to investigational drug use fails for the predicate reasons that (1) Plaintiffs never contend that they received a COVID vaccine and (2) Pfizer-BioNTech's vaccine was FDA approved at the time of Shriners Children's mandate. Mot. at 21-23; *supra* Section II.B. Plaintiffs acknowledge that they "did not assert that Shriners engaged in a human trial nor attempted to put them under a clinical trial." Opp. at 47; *see also Johnson*, 567 F. Supp. 3d at 1248 (state workers challenging mandate to "take an FDA-authorized vaccine" is a "very different context" than claiming they were part of medical experimentation). On this basis, Plaintiffs were not subjected to investigational drug use and Count 1 should be dismissed.

Section 1983/Private Rights of Action. Plaintiffs suggest that there is a distinction between a private right of action under the EUA Act (21 U.S.C. § 360bbb-3) and a Section 1983 action to enforce rights under the same statute.

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Opp. at 38. But the U.S. Supreme Court has held that the inquiry is the same. "A court's role in discerning whether personal rights exist in the § 1983 context should therefore not differ from its role in discerning whether personal rights exist in the implied right of action context." *Gonzaga Univ. v. Doe*, 536 U.S. 273, 285 (2002) (adding that "[b]oth inquiries simply require a determination as to whether or not Congress intended to confer individual rights upon a class of beneficiaries"); *see also Huling v. City of Los Banos*, 869 F. Supp. 2d 1139, 1154 (E.D. Cal. 2012) ("[I]f there is no basis for a private right of action under the particular federal statute, that statute does not create a federal right for purposes of section 1983.").

Shriners Children's cited several cases in which courts concluded that the EUA Act provides no private right of action to assert claims, while Plaintiffs identified no contrary authority. Mot. at 25, 49. Given this, the Court should conclude that Plaintiffs cannot assert claims pursuant to 21 U.S.C. § 360bbb-3, whether through Section 1983 or a private right of action. *See also Wilkins v. Herron*, 2023 WL 8276897, at *4 (D. Or. Nov. 30, 2023) (no private right of action to enforce EUA Act via Section 1983 claim); *Ibekweh v. Ascend Learning, Inc.*, 2023 WL 6292526, at *6 (E.D.N.Y. Sept. 27, 2023) (EUA Act "does not provide an individual right" and plaintiff "has failed to identify any right conferred by Section 360bbb-3 that he can vindicate in a Section 1983 action.").

In addition, as Judge Bryan recognized in *Curtis*, none of the statutes or other sources cited by Plaintiffs (21 U.S.C. § 360bbb-3, 10 U.S.C. § 980, 45

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C.F.R. Part 46, the Belmont Report, the ICCPR Treaty, Federal Wide Assurance, or the CDC COVID-19 Vaccination Program Provider Agreement) provides a private right of action. *Curtis*, 2023 WL 8828753, at *5 ("The Plaintiffs fail to show that any of the federal statutes, regulations, reports or international treaties they cite in their Amended Complaint apply and/or that they contain a private cause of action that is available against Gov. Inslee in federal court."). For these and the previous reasons cited by Shriners Children's (Mot. at 21-27, 49), the Court should dismiss Counts 1 and 10.

Substantive Due Process Claim. Plaintiffs minimally discuss Shriners Children's due process arguments, in particular that COVID vaccination requirements are lawful, do not implicate fundamental rights, and need only satisfy the deferential rational basis standard. Mot. at 29-33. "The COVID-19 vaccine mandates do not implicate a fundamental right protected by the substantive due process clause." *Curtis*, 2023 WL 8828753, at *5 (citing *Kheriaty v. Regents of the Univ. of Calif.*, 2022 WL 17175070, at *1 (9th Cir. Nov. 23, 2022)); *Snyder v. Chi. Transit Auth.*, 2023 WL 7298943, at *8 (N.D. Ill. Nov. 6, 2023) ("Multiple circuit courts have found there is no fundamental right to be free from the COVID-19 vaccine in the workplace," citing Second, Sixth, Seventh, and Ninth Circuit cases); *Schmidt v. City of Pasadena*, 2023 WL 4291440, at *10 (C.D. Cal. March 8, 2023) ("The current caselaw supports the view that there is no fundamental right to be free of vaccination." (citing *Jacobson v. Massachusetts*, 197 U.S. 11 (1905), and *Kheriaty*).

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Plaintiffs' only response is to circle back to their contention that the Pfizer-BioNTech vaccine was still "investigational" despite FDA approval and claim this distinguishes the Supreme Court's holding in *Jacobson*. Opp. at 50 ("Requiring Plaintiffs to have their skin pierced with a needle containing an EUA/PREP Act drug violates those fundamental rights."). But the U.S. Supreme Court rejected arguments in *Jacobson* that the plaintiff had a right to refuse a smallpox vaccine that had been approved by public health officials, even as the plaintiff offered to prove that the vaccine could cause serious injury or was ineffective. 197 U.S. at 34-36 ("The common belief … is that [the vaccine] has a decided tendency to prevent the spread of this fearful disease, and to render it less dangerous to those who contract it. While not accepted by all, it is accepted by the mass of the people, as well as by most members of the medical profession. …[W]e hold that the statute in question is a health law, enacted in a reasonable and proper exercise of the police power.").

The circumstances in *Jacobson* and this case are analogous given the FDA's approval of Pfizer-BioNTech's vaccine. Governor Inslee's Proclamation requiring healthcare workers to receive COVID vaccinations has been held to satisfy the rational basis standard. *Curtis*, 2023 WL 8828753, at *5; *see also Bacon v. Woodward*, 2021 WL 5183059, at *4 (E.D. Wash. Nov. 8, 2021) (vaccination mandate for Spokane city employees satisfies either strict scrutiny or rational basis review given compelling government interest in preventing spread

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of COVID).[4] And Shriners Children's institution of an employee vaccination requirement to protect its patients, their families, its workers, and others—at a time when Shriners Children's youngest patients could not receive a COVID vaccine and with infection rates spiking due to the delta variant—satisfies this standard as well. *See Antunes v. Rector & Visitors of Univ. of Va.*, 627 F. Supp. 3d 553, 565 (W.D. Va. 2022); *Does 1-6 v. Mills*, 566 F. Supp. 3d 34, 52 (D. Me. 2021); *see also Curtis*, 2023 WL 8828753, at *2 (noting that "COVID cases, hospitalizations and deaths rose sharply" in summer 2021 with the emergence of the "highly contagious" delta variant). Plaintiffs' due process claim (Count 3) accordingly should be dismissed.

Equal Protection Claim. Plaintiffs do not claim that they are members of a suspect class, only that they were "healthcare professionals who were treated differently based on their 21 U.S.C § 360bbb-3(e)(1)(A)(ii)(III) option, depriving them of their fundamental Equal Protection rights under the Fourteenth Amendment." Opp. at 51. Plaintiffs do not meaningfully address the cases cited by Shriners Children's that their equal protection claim must be evaluated under rational basis review. Mot. at 34-37. As discussed, Shriners Children's had a rational basis in instituting its employee vaccination policy and Plaintiffs' claim (Count 2) must be dismissed. *See also Curtis*, 2023 WL 8828753, at *4 (noting

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[4] Plaintiffs do not discuss either *Bacon* or *Wise v. Inslee*, 2022 WL 1243662 (E.D. Wash. April 27, 2022), two previous vaccine mandate cases decided by this Court, in their Opposition.

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"[v]accination requirements are a common feature of healthcare in America" and "COVID-19 vaccine mandates for healthcare workers 'substantially reduce the likelihood that healthcare workers will contract the virus and transmit it to their patients'") (quoting *Biden v. Missouri*, 595 U.S. 87, 93 (2022)).

Spending Clause and Unconstitutional Conditions Claims. Plaintiffs do not discuss their spending clause and unconstitutional conditions claims (Counts 4 and 5) in their Opposition, and the Court should dismiss these claims for the reasons previously explained by Shriners Children's. Mot. at 37-40; *see also Curtis*, 2023 WL 8828753, at *7 (dismissing unconstitutional conditions claim when plaintiffs could not prove denial of government benefit when they, as Plaintiffs here, were at-will employees of a private employer).

PREP Act. Though Plaintiffs reference the PREP Act numerous times in their Opposition, they do not allege that they suffered "death or serious physical injury" proximately caused by "willful misconduct" in the administration of a covered countermeasure such as a COVID vaccine, as required to state this claim. 42 U.S.C. § 247d-6d(d)(1). Nor could they when Plaintiffs do not allege that they received a COVID vaccine at all. However, an action related to "death or serious physical injury" is the "sole exception" to the broad "immunity from suit" that the PREP Act otherwise provides. *Id.*; *see also* Mot. at 40-41.

Plaintiffs claim they alleged "emotional distress; mental, psychological and physical harm; and loss of enjoyment of life" and "various economic injuries" resulting from their failure to comply with Shriners Children's vaccine mandate.

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Opp. at 51. This does not rise to the level of "death or serious physical injury," nor did Plaintiffs sufficiently plead their PREP Act allegations with particularity as required under 42 U.S.C. § 247d-6d(e)(3), nor did they submit the physician affidavits and certified medical records as required under § 247d-6d(e)(4)(C) to establish that they suffered "the serious physical injury or death alleged in the complaint and that such injury or death was proximately caused by the administration or use of a covered countermeasure." A PREP Act claim further can only be brought in United States District Court for the District of Columbia after the plaintiff exhausts administrative remedies (which Plaintiffs have not). 42 U.S.C. §§ 247d-6d(e)(1) & 247d-6e(d)(1).

Absent evidence of serious injury/death resulting from willful misconduct, Plaintiffs do not have an actionable claim under the PREP Act and their claim (Count 6) should be dismissed. *See also Liner v. Terminix Pest Control, Inc.*, 2023 WL 8005008, at *7 & n.58 (E.D. La. Nov. 17, 2023) (case brought by this same plaintiffs' counsel; concluding that "except for one narrow exception" for willful misconduct "PREP Act claims cannot be brought in federal court," "the PREP Act does not create a general cause of action," and "[t]he willful misconduct exception is procedurally narrow and requires plaintiffs to satisfy strict standards of pleadings and proof"); *Hughes v. Terminix Pest Control, Inc.*, 2023 WL 5015314, at *6 (E.D. La. Aug. 7, 2023) (case brought by this same plaintiffs' counsel; concluding "[t]he PREP Act is, at its core, an immunity

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statute" that "does not create a federal cause of action or any rights, duties, or obligations") (citation omitted).

Breach of Contract. Plaintiffs ignore Shriners Children's authority demonstrating that parties to a contract only create a third-party beneficiary relationship if the entire contract was intended to *necessarily* and *directly* benefit that third party; mention of a third party, or any indirect benefit flowing to them, is insufficient. Mot. at 43-44 (citing *Del Guzzi Constr. Co. v. Global Nw. Ltd.*, 105 Wn.2d 878, 866 (1986) and *Kim v. Moffett*, 156 Wn. App. 689, 701 (2010)). In response, Plaintiffs summarily state that "the entire Provider Agreement was designed to protect the potential recipient of the drugs" and therefore that recipient is provided "third-party rights." Opp. at 52. But Plaintiffs' unsupported assertion, contrary to Washington law regarding third-party beneficiary relationships, is insufficient to withstand dismissal. *See also Atchley v. Pepperidge Farm, Inc.*, 2008 WL 2074035, at *8 (E.D. Wash. May 14, 2008) (treating failure to address or provide contrary argument as concession of issue).

Plaintiffs do attempt to rebut Shriners Children's argument that the individually named Defendants are not parties to the Provider Agreement and thus cannot be liable for any breach. Mot. at 45. Plaintiffs reference that the Chief Medical Officer and Chief Executive Officer are listed as signatories to the agreement. Opp. at 53. The problem with this argument is that the Provider Agreement Plaintiffs attached to their Complaint does not include any signatures or names, and Plaintiffs have not alleged that any individually named Defendant

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actually signed the Agreement. *See* ECF No. 1-1. Plaintiffs' breach of contract claim (Count 7) therefore fails.

Employment Torts. Rather than identify the employment-related tort claim(s) they intended to assert after being made aware that their Complaint ran afoul of Rule 8 and otherwise did not state any cognizable claim, Mot. at 45-47, Plaintiffs instead responded with vague statements about how "Shriners PolicyMakers enacted the vaccination policy, authorized persons to enforce the policy, and the policy was the basis for Plaintiffs being deprived of their rights, leading to financial, emotional, and other damages." Opp. at 53.[5] As with the allegations in their Complaint, Plaintiffs' Opposition fails to address or distinguish Shriners Children's cited authority, which demonstrates that Plaintiffs need, but have failed, to identify a viable employment tort(s) claim (Count 8) under Washington law sufficient to survive dismissal. Mot. at 45-47. And though not Shriners Children's burden, an affirmative search for a viable employment-related tort claim consistent with Plaintiffs' allegations yielded no results, because their allegations are not consistent with a viable wrongful termination claim. Mot. at 46-47 (discussing *Antunes*, 627 F. Supp. 3d at 567, and *Fallon v. Mercy Catholic Med. Ctr. of Se. Pa.*, 200 F. Supp. 3d 553 (E.D. Pa. 2016), as dismissing wrongful termination claims arising from employees' failure

[5] Plaintiffs seemingly suggest that just referencing "Shriners PolicyMakers" some "75 times in the Complaint" is sufficient support for their unspecified employment tort claim(s). Opp. at 53.

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to receive vaccination in accordance with employer policy). Again, Plaintiffs do not address this argument and therefore concede it. *See Atchley*, 2008 WL 2074035, at *8.

Outrage. Plaintiffs' outrage claim should be dismissed because it relies on conclusory allegations of harm related to Shriners Children's lawful vaccination requirement. Mot. at 47-49. Plaintiffs' entire argument in response states, "Defendants' claim that Plaintiffs' Outrage claim should be dismissed for reasons they instituted a vaccine requirement fails for reasons previously stated." Opp. at 53. To support this sentence, they cite "Doc 32," which is Shriners Children's own Motion. This complete non-response is a concession. Count 9 fails as a result.

Dismissal Without Leave to Amend. Plaintiffs do not discuss Shriners Children's argument that Plaintiffs' claims should be dismissed without leave to amend. Mot. at 49-50. Indeed, Plaintiffs acknowledge the futility of their claims should the Court determine that an FDA-approved vaccine was available for compliance with Shriners Children's employee requirement. *See supra* Section II.B; Opp. at 5 ("Plaintiffs make no assertions regarding whether it is lawful for a public or private entity to mandate a ***licensed*** vaccine.") (emphasis in original).

III. CONCLUSION

As the Court in *Johnson* emphasized, an employee vaccination mandate like Shriners Children's "presents Plaintiffs with a difficult choice, but it is nevertheless a choice. Plaintiffs may either get the vaccine, apply for an

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exception, or look for employment elsewhere." 567 F. Supp. 3d at 1256-57. Plaintiffs chose not to comply with Shriners Children's lawful employee vaccination policy and their employment was terminated as a result. But the consequences from their "difficult choice" provide no basis for relief against Shriners Children's. Plaintiffs' claims are fundamentally deficient and fail in their entirety as a matter of law. The Court should dismiss Plaintiffs' claims against the Shriners Children's Defendants in full and without leave to amend.

DATED this 19th day of January, 2024.

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CERTIFICATE OF SERVICE

I hereby certify that on the 19th day of January, 2024, I electronically filed the foregoing document with the Clerk of the Court using the CM/ECF system which will send notification of such filing to the following:

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